



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 35TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 20TH DAY OF SEPTEMBER, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA-LNB

HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

COUN. APOLONIO B. PANONG

- On Official Leave of Absence (FL)

Resolution No. 299-2021

RESOLUTION ADOPTING AN ORDINANCE ESTABLISHING GUIDELINES IN THE ACCREDITATION/REGISTRATION OF TRICYCLE OPERATORS AND DRIVERS ASSOCIATION (TODA) AT THE TRICYCLE REGULATORY UNIT (TRU) FOR THE PURPOSE OF ISSUANCE OF TEMPORARY AUTHORITY TO ESTABLISH TEMPORARY LOADING/UNLOADING STATION WITHIN THE TERRITORIAL JURISDICTION OF DAET, CAMARINES NORTE AND PROVIDING PROGRAMS, PROJECTS AND ACTIVITIES FOR THEIR DEVELOPMENT AND ALLOCATING FUNDS THEREFOR

WHEREAS, the Daet Comprehensive Tricycle and Regulatory Code of 2015 provides that each franchise shall have only one (1) registered TODA which shall be granted Temporary Permit for their temporary departure area;

WHEREAS, the same Code provides that the TODA through its President shall submit to the TRU not later than 15th day of April of every year an audited Financial Statement of the Association done by the Treasurer, certified by the association Auditor and attested by the President. Failure to submit the said documents within the prescriptive period shall be ground for cancellation of Temporary Authority to operate;

WHEREAS, Article XXIII of the same Code established the policies to be followed by the Tricycle Operators and Drivers Association (TODA) in the municipality, however, various conflicts among them arises resulting to break-away groups and organization of new TODA resulting to more conflict on jurisdiction at the designated temporary loading/unloading station;

WHEREAS, the Local Government Code of 1991 empowers the local sanggunian to regulate the use of streets, avenues, alleys, sidewalks, bridges, parks and other public places and approve the construction, improvement, repair and maintenance of the same; establish bus and vehicle stops and terminals or regulate the use of the same by privately-owned vehicles which serve the public; regulate garages and operation of conveyances for hire; designated stands to be occupied by public vehicles when not in use; regulate the putting up of signs, signposts, awnings and awning posts on the streets; and provide for the lighting, cleaning and sprinkling of streets and public places;

WHEREAS, there is a need to establish guidelines related to accreditation/recognition of TODA at the TRU to provide guidance and policies to the existence of tricycle temporary departure area in the municipality;

NOW THEREFORE, after due deliberation, on motion of Councilor Marlon T. Bandelaria, with Councilors Apolonio B. Panong and Tomasito Santiago C. Turingan as co-movants, seconded by Councilors Pedro S. Musa, Ma. Eliza H. Llovit, Judy Rose T. Gallardo, William Carlo R. Avila, Nestor F. Dalida, Rossano C. Valencia and Felix C. Abaño;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 426-2021

AN ORDINANCE ESTABLISHING GUIDELINES IN THE ACCREDITATION/REGISTRATION OF TRICYCLE OPERATORS AND DRIVERS ASSOCIATION (TODA) AT THE TRICYCLE REGULATORY UNIT (TRU) FOR THE PURPOSE OF ISSUANCE OF TEMPORARY AUTHORITY TO ESTABLISH TEMPORARY LOADING/UNLOADING STATION WITHIN THE TERRITORIAL JURISDICTION OF DAET, CAMARINES NORTE AND PROVIDING PROGRAMS, PROJECTS AND ACTIVITIES FOR THEIR DEVELOPMENT AND ALLOCATING FUNDS THEREFOR

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "TODA'S TRU ACCREDITATION/REGISTRATION ORDINANCE OF DAET, CAMARINES NORTE".

SECTION 2. PURPOSE. To establish guidelines for the registration and accreditation of legitimate tricycle operators and drivers association in the municipality pursuant to the provision of the Local Government Code and its Implementing Rules and Regulations to strengthen the existence of local organization of public tricycle sector thereby building a resilient partnership towards economic, socially-oriented, environmental, and cultural development of the municipality.

SECTION 3. SCOPE AND COVERAGE. All Tricycle Operators and Drivers Association (TODA) in Daet, Camarines Norte intending to apply for accreditation/registration at the TRU to seek Temporary Permit for their temporary departure area and who wish to avail of the programs and activities offered by the LGU Daet are covered by this Ordinance. Provided, that the said TODA complied with the administrative requirements enumerated in this Ordinance.



SECTION 4. INVENTORY AND DIRECTORY OF TRICYCLE OPERATORS AND DRIVERS ASSOCIATION. Upon approval of this Ordinance, the Tricycle Regulatory Unit (TRU) through the TRU Chairman/Head shall conduct inventory of TODA in the municipality, and submit the Directory at the Tricycle Regulatory Board (TRB) through the Secretariat containing the following information:

- a. Name of TODA, address, contact number and email address;
- b. List of officers and members indicating therein the franchise number;
- c. Tricycle route;
- d. Location of temporary loading/unloading station, if any.

SECTION 5. CALL FOR ACCREDITATION. Based on the directory, the Tricycle Regulatory Board (TRB) through the TRB Chairman shall issue a Notice of Call for Accreditation within the month of August of the preceding local elections.

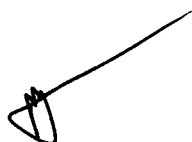
SECTION 6. ACCREDITATION OF TODA. Every Tricycle Operators and Drivers Association (TODA) seeking for new accreditation or renewal shall submit two (2) copies of the following to the TRB:

- A. Resolution signifying intention for accreditation for the purpose of issuance of temporary authority to establish temporary loading/unloading station (see Annex A);
- B. Certificate of Registration (SEC, DOLE, etc.);
- C. Certificate of Good Standing or Status of Registration (SEC, DOLE, etc.);
- D. Constitution and By-Laws;
- E. List of current officers and members with contact numbers and franchise number;
- F. Past year Financial Statement, at the minimum, prepared by the Treasurer of the organization, certified correct by the association Auditor and attested by the President;
- G. Past year Copy of the Minutes of the Meeting of the organization;
- H. Sketch Plan of Temporary Loading/Unloading Station, if applicable, and the house rules being implemented.

SECTION 7. ACCREDITATION PROPER. The Tricycle Regulatory Board shall evaluate the documents submitted by the applicant and determine the legality of its existence and compliance to the existing local ordinances. The Board may invite the appearance of the TODA's officers to further evaluate the organization's track record.

The Board shall consult with the Daet PNP and PSTMU to determine whether the location of temporary loading and unloading station of the TODA is still suited in the current developmental plans of the municipality and in accordance to the existing laws and rules.

Accredited TODA shall be issued a Certificate of Accreditation which the validity is co-terminus with the local chief executive (see Annex B).



SECTION 8. PROGRAMS AND ACTIVITIES FOR ACCREDITED TODA. The LGU Daet through the Tricycle Regulatory Unit (TRU) and Office of the Mayor may provide any of the following programs and activities for members of accredited TODA:

- a. **Livelihood Augmentation Program** – this may include provision of gasoline, repair and maintenance, and other benefits that may be provided to the sector to augment their livelihood to continuously operate their unit especially in times of crisis. The amount of assistance shall be no less than P 500.00 for each franchise annually;
- b. **Motor Vehicle Registration Assistance** – this may include provision of motor vehicle insurance as one of the requirements in processing the renewal of registration of their motor vehicle at the LTO. The amount of assistance shall be no less than P 300.00 for each franchise. The insurance to be provided shall not apply to transferred franchise which the original franchisee had already provided the assistance;
- c. **Annual TODA Sportsfest** – this is an annual sportsfest for all tricycle operators and drivers to provide venue for physical and mental exercise;
- d. **Free Seminar on Traffic Rules and Regulations** – this is an annual seminar on traffic rules and regulations as one of the requirements in the renewal of registration of franchise;
- e. **Construction or Improvement of tricycle stops or terminal** – this is a project that may be provided to accredited TODA that satisfactorily complied in the administrative requirements of the LGU for five (5) consecutive years;
- f. **Involvement in LGU transport planning and budgeting** – accredited TODA may be appointed as one of the members of the local special bodies or be selected to be part of the LGU planning and budgeting;
- g. **Income Generating Project** – this is provision of financial assistance to accredited TODA with at least five (5) years good financial standing subject for approval of TRB. For purposes of granting the assistance, the beneficiary shall be required to submit feasibility study.

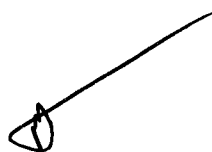
SECTION 9. AUTHORITY OF THE TRICYCLE REGULATORY BOARD. Prioritization in the implementation of programs, projects and activities under Section 8 shall be subject for approval of the Tricycle Regulatory Board and available funds thereof.

SECTION 10. FUNDING REQUIREMENT. The amount necessary for the implementation of programs, projects and activities for accredited TODA shall be included in the Annual Budget of the Municipal Government of Daet in the amount no less than P 3,000,000.00 for the initial year, and maybe increased subject to availability of funds.

The appropriations shall be included under the Office of the Mayor and Tricycle Regulatory Unit (TRU).

SECTION 11. MORATORIUM. Moratorium in accepting application for registration/accreditation of newly organized TODA at the TRU is hereby declared until such time the call for accreditation has been issued.

SECTION 12. REPEALING CLAUSE. All ordinances, resolutions, local executive orders, rules and regulations or any part thereof inconsistent herewith are deemed repealed, modified or amended accordingly.



SECTION 13. SEPARABILITY CLAUSE. The provisions of this Ordinance are hereby declared separable. In the event that one or more provisions are held illegal or unconstitutional, the validity of the other provisions shall not be affected.

SECTION 14. EFFECTIVITY. This Ordinance shall take effect upon approval.

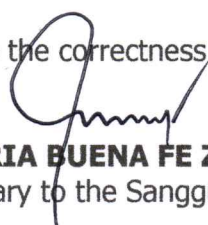
ENACTED.

RESOLVED FURTHER, to furnish copies hereof, the Mayor's Office, Municipal Budget Office, Municipal Accounting Office, Municipal Treasurer's Office, the Sangguniang Panlalawigan and all others concerned for their information and appropriate action;

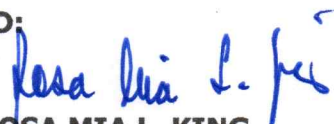
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


COUN. MARLON T. BANDELARIA
Proponent,


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: SEP 29 2021

Annexes:

A – Sample TODA Resolution

B – Certificate of Accreditation/Registration

(Heading)

EXCERPTS FROM THE MINUTES OF MEETING OF TRICYCLE OPERATORS AND DRIVERS ASSOCIATION (TODA) HELD AT _____ (place) ON _____ (date)

PRESENT:

ABSENT:

Resolution No. _____ series 2021

RESOLUTION SIGNIFYING INTENTION FOR ACCREDITATION/REGISTRATION AT THE TRICYCLE REGULATORY UNIT (TRU) OF THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE FOR THE PURPOSE OF ISSUANCE OF TEMPORARY AUTHORITY TO ESTABLISH TEMPORARY LOADING/UNLOADING STATION AND PARTICIPATION IN LOCAL GOVERNMENT PROGRAMS, PROJECTS AND ACTIVITIES

WHEREAS, the (name of organization) received the call for accreditation from the Tricycle Regulatory Board (TRB) of the municipal government of Daet, Camarines Norte;

WHEREAS, the (name of organization) is a duly registered organization with certificate of registration issued by _____;

WHEREAS, the (name of organization) promotes the resilient partnership of people's organizations and government in the pursuit of economic, socially-oriented, environmental, and cultural development of the municipality through active participation and cooperation in the plans, programs, projects and activities of the local government unit;

WHEREAS, the (name of organization) adheres to the principle of camaraderie and shall ensure active cooperation in maintaining peace and order within the organization and in the community to continuously provide better public service to the commuters;

NOW THEREFORE, on motion of Mr. _____, unanimously seconded;

BE IT RESOLVED, as it is hereby resolved, to approve the "RESOLUTION SIGNIFYING INTENTION FOR ACCREDITATION/REGISTRATION AT THE TRICYCLE REGULATORY UNIT (TRU) OF THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE FOR THE PURPOSE OF ISSUANCE OF TEMPORARY AUTHORITY TO ESTABLISH TEMPORARY LOADING/UNLOADING STATION AND PARTICIPATION IN LOCAL GOVERNMENT PROGRAMS, PROJECTS AND ACTIVITIES";

RESOLVED FURTHER, to furnish copies hereof, the Tricycle Regulatory Board (TRB), the Tricycle Regulatory Unit (TRU), the Office of the Mayor and all other concerned for their information and appropriate action;

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:

(Secretary)

ATTESTED:

(President)



Annex B – Municipal Ordinance No. 426-2021
Certificate of Accreditation/Registration

Republic of the Philippines
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MUNICIPALITY OF DAET

CERTIFICATE OF TODA ACCREDITATION

THIS IS TO CERTIFY THAT, having satisfactorily complied with the administrative requirements for accreditation/registration at the Tricycle Regulatory Unit (TRU) of the Local Government Unit of Daet pursuant to the Municipal Ordinance No. _____ dated _____,

TRICYCLE OPERATORS AND DRIVERS ASSOCIATION

an organization primary registered with the _____, with Reg. No. _____, established in accordance with law and recognized thru Tricycle Regulatory Board (TRB) Resolution No. _____ dated _____ is hereby awarded this Certificate of Accreditation for the purpose of issuance of temporary authority to establish temporary loading/unloading station at _____ which is valid until June 30, 2025 unless sooner revoked/invalidated for a cause.

IN WITNESS WHEREOF, we have hereunto set our hand and caused the seal of Sangguniang Bayan of Daet to be affixed herein this _____ day of _____ in Daet, Camarines Norte, Philippines.

ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

WITH CONCURRENCE OF THE MUNICIPAL COUNCILORS:

MA. ELIZA H. LLOVIT

MARLON T. BANDELARIA

TOMASITO SANTIAGO C. TURINGAN

ROSSANO C. VALENCIA

APOLONIO B. PANONG

NESTOR F. DALIDA

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